

Court No. - 21

Case :- WRIT - C No. - 9385 of 2018

Petitioner :- Hari Nath Yadav

Respondent :- State Of U.P. And 04 Others

Counsel for Petitioner :- Jagadeesh Prasad Chaurasiya

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the respondents no. 2, 3 and 4 and learned Standing Counsel for the State.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the impugned demand notice dated 26.04.2017 issued by the respondents.

It is contended on behalf of the petitioner that since she did not receive the copy of the provisional assessment notice, as such she could not submit her reply and in absence whereof the respondent treated it to be final and issued recovery certificate. Learned counsel for the petitioner states that the petitioner will submit objection to the provisional assessment within two weeks from today. Learned counsel appearing for the petitioner has also invited our attention towards the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the provisional assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.4,56, 912/-. The notice also does not specify the date and time for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned demand notice dated 26.04.2017 is hereby quashed. The final assessment order shall be made within six weeks after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar** (supra).

Order Date :- 14.3.2018

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